

question of fact. (*Id.*, at p. 447 [“Ordinarily, proximate cause is a question of fact, but where the facts are undisputed and only one conclusion can be drawn, it is a question of law.”].)

The incident here involved Plaintiff approaching a display of products in boxes that were stacked vertically with their short side facing down and one in front of another, two wide and two tall. (Dunn Decl., ISO MSJ, ¶ 4, Plaintiff Deposition Exh. 1.) On top of each “row” of vertically stacked boxes there were two boxes resting on top horizontally that were being held up by the vertically stacked boxes. (*Ibid.*) The boxes appear to have weighed between 50-100 pounds. (Response to Separate Statement, No. 4.)

Defendant asks the Court to rule that Plaintiff’s “own conduct was the proximate cause of the accident” and that “Plaintiff is the sole cause of the accident.” (MPA ISO MSJ, pp. 11-12; Reply, p. 7.) However, “[c]omparing the relative fault of plaintiff and defendants is a question of fact that must be resolved by a trier of fact and cannot be resolved by way of a summary judgment motion.” (*Sanchez v. Hillerich & Bradsby Co.* (2002) 104 Cal.App.4th 703, 715.)

The Court finds that it cannot hold as a matter of law that under the undisputed facts there is no room for a reasonable difference of opinion as to whether any reasonable person would have lifted the box up before pulling it towards them—that is a question of fact. Whether Defendant acted properly when it placed two 50-100 pound boxes horizontally on top of rows of vertically placed boxes is also a question of fact. It is possible for a reasonable person to conclude that the incident may not have occurred if: (1) Defendant placed all the boxes horizontally; or (2) Defendant did not place boxes horizontally on top of the rows of vertically placed boxes. This is especially true considering the weight of the boxes and the rule that “[a]ll doubts as to whether there are any triable issues of fact are to be resolved in favor of the party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.)

Ruling

The Court **DENIES** Defendant’s motion for summary judgment.

5. 9:00 AM CASE NUMBER: C24-01467
CASE NAME: PROTECTIVE INSURANCE COMPANY VS. STERLING LOGISTICS, A CORPORATION
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY: STERLING LOGISTICS, A CORPORATION
TENTATIVE RULING:

The unopposed motion of **Ramin Mozaffar** to be relieved as counsel for Defendant Sterling Logistics, Inc. is **granted**. The motion was initially set for hearing on August 14, 2026, but was advanced per the order of the court to May 15, 2026. Notice of the new hearing date was

served on the Defendant and all parties and was filed with the Court on April 21, 2026.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. section 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Defendant Sterling Logistics' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Defendant Sterling Logistics'** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will re-execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the next dates scheduled in the case. The withdrawal is effective upon Ramin Mozaffar filing proof of service of signed order on Defendant Sterling Logistics and all parties.

6. 9:00 AM CASE NUMBER: C24-01746
CASE NAME: JORDAN MOUTON VS. RYAN BUENAFLO
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES
FILED BY: MOUTON, JORDAN
TENTATIVE RULING:

Continued by the parties.

7. 9:00 AM CASE NUMBER: C24-01746
CASE NAME: JORDAN MOUTON VS. RYAN BUENAFLO
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS
FILED BY: MOUTON, JORDAN
TENTATIVE RULING:

Continued by the parties.